

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

Branch source B05: rehearing-denial route marker B05.

United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Order Denying Panel Rehearing and Rehearing En Banc

Entered August 4, 2026

Mara Ellison's timely combined petition for panel rehearing and rehearing en banc has been considered. The panel denies rehearing. The petition was circulated to the active judges of the Court, and no judge requested a poll on rehearing en banc. The en banc request is therefore denied as well.

The petition correctly accepts the June 30 jurisdictional ruling: the Court cannot decide in this interlocutory posture whether Ellison struck Officer Nolan Rusk, reached toward his duty belt, or only recoiled and pulled. It challenges instead the legal qualified-immunity holding on the plaintiff-favorable facts. After reconsidering that distinction, the panel remains persuaded that the prior disposition respects it.

The Court's holding does not add Rusk's disputed threat account to the assumed facts. It accepts no strike, reach, flight, weapon, or immediate danger. It nevertheless concludes that, on February 3, 2025, circuit precedent had not placed beyond debate the unlawfulness of one five-second contact-mode cycle used during active arm pulling before handcuffing. The panel does not hold that the force was constitutionally reasonable; the published opinion assumes a violation and resolves only fair notice.

The June 30 opinion and judgment remain unchanged.

Authorities Raised by the Petition

The petition emphasizes the prospective language in *Estate of Armstrong v. Village of Pinehurst*. The panel agrees that later officers were on notice that serious electrical force against a stationary, nonviolent mental-health subject can be excessive absent an immediate safety risk. It also agrees that physical noncompliance is not automatically dangerous. Rehearing is denied because the prior opinion already credited those rules and addressed the material differences in application count, movement, timing, and the stage of control.

Barricks v. Wright reinforces the need to take plaintiff-favorable facts and permits legal immunity review on those assumptions. It does not require that every collection of force cases defeat immunity despite factual distinctions. The panel's dismissal of Rusk's evidence challenge and its review of the notice question are consistent parts of the same collateral-order framework.

The Court has not treated *Zorn v. Linton* as a source of notice in February 2025. *Zorn* postdates the encounter. It informs the specificity method applied when this Court decides the appeal in 2026, while the content of historical fair warning remains limited to authority available when Rusk acted. The petition's temporal concern does not identify a point the opinion overlooked.

No statement in this order enlarges the published decision, approves electrical force during welfare checks as a category, or determines facts hidden by the recordings. The narrow judgment rests on the assumed single-cycle sequence described in the opinion.

Mandate Consequence

Because the combined petition was timely, mandate issuance was withheld while the petition remained pending. Federal Rule of Appellate Procedure 41(b) now sets the ordinary issuance date seven days after this denial, absent a motion or order that changes the calculation. Seven calendar days after August 4 is August 11, 2026. The Clerk shall place that date on the docket as the presently scheduled release.

This denial is not itself the mandate. Until issuance, the court of appeals retains the judgment in its mandate posture and the district court does not receive the certified materials that make the appellate disposition effective. The parties shall not represent that remand occurred on the date of this order.

A motion to stay mandate pending a petition for certiorari, if a party elects to file one, must comply with Rule 41(d), be served, and establish both a substantial question and good cause. Nothing here grants such a stay or predicts how a properly supported request would be resolved. A late filing would not alter the schedule without court action.

The Clerk shall serve counsel electronically and maintain the counterfactual docket's separation from every actual filing. The ordinary seven-day calculation, rather than an immediate-issuance direction, governs this rehearing path. Entered at the direction of Chief Judge Alder and Judges Reed and March.

PANEL REHEARING DENIED; REHEARING EN BANC DENIED.